

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

FILED FOR RECORD
2021 NOV 23 AM 10:44
CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MANOR MHC HOLDINGS, INC

ET AL

Plaintiff AND CROSS COMPLAINT

DEFENDANT,

vs.

LORI SKIPPER,

DEFENDANT, CROSS COMPLAINT

PLAINTIFF

CASE NUMBER: 2021CA4553

ANSWER TO PLAINTIFF'S COMPLAINT

1. Defendant denies there was any breach on contract on her part and agrees this is the proper venue for this action.
2. The Defendant does reside in Manatee County, Florida and has agreed to the Court's jurisdiction.
3. Defendant is unaware of the events and omissions as claimed by the Plaintiff and therefore denies the origin of this matter was within Manatee County.
4. The Defendant has seen no proof of, nor has the Plaintiff provided proof of Plaintiff's legal ownership or lawful right to conduct business in Florida or anywhere else for that matter and therefore denies.

5. Defendant admits to being a former employee of Colonial Manor and is a former resident and a current resident of Colonial Manor.
6. Defendant has no specific knowledge of when she was hired by Colonial Manor however admits she was a resident manager for a short time.
7. Defendant denies there was a valid employment agreement in place prior to or during her employment with Colonial Manor as evidenced by Plaintiff's Exhibit A.
8. Defendant was not responsible for marketing, budgeting, and cannot verify which third parties the Plaintiff is addressing and therefore denies this allegation.
9. During her employment, the Defendant did not ever have access to any specific confidential business information and does not recall being advised that any access she had, included confidential information of any nature.
10. Defendant has no idea what if any value from any information she was exposed to and therefore denies Plaintiff's claim.
11. Colonial Manor often releases resident names and contact information not only to current park residents but also to people not affiliated with the park.
12. Defendant denies causing any harm to the Plaintiff.
13. Defendant denies this allegation in whole.
14. Since no agreement existed at the time of Defendant's employment, Defendant was not under any restrictive covenant.
15. Defendant denies Plaintiff's allegation because she has no idea what Plaintiff's motives or thoughts were when she was hired.

16. While Defendant resigned in the first part of September, she did so at the request of the management of COLONIAL MANOR MHC HOLDINGS, INC and was placed at one of their other facilities in New Mexico.
17. Defendant admits for her own safety, she shredded her employment application only because it was a copy, with the original in the Utah corporate office, because it had her full social security number and personal identifying information therein.
18. At no time did the Defendant remove her personnel file and it was last seen in possession of the current park manager, therefore the Defendant denies this allegation.
19. At no time did the Defendant make copies of any confidential information belonging to Colonial Manor.
20. Defendant was nominated and elected by the residents of Colonial Manor as HOA President and later changed the name of the existing HOA name to the correct name with approval of the membership and assistance from some members.
21. Defendant denies use of any information that was not condoned by Colonial Manor and therefore denies this allegation.
22. Since no specific resident contact information has been identified, the Defendant denies this allegation.
23. Defendant is unaware of any Complaints filed by any residents of Colonial Manor regarding communications and therefore denies this allegation.
24. Defendant denies this allegation.

25. Defendant did receive a letter from one of many lawyers representing Colonial Manor which was interpreted as an attempt to subvert the voting rights of the residents of Colonial manor and in violation of Florida 723.054:

“723.054 Right of mobile home owners to peaceably assemble; right to communicate.—

(1) No provision contained in any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park shall infringe upon the right of the mobile home owners to peaceably assemble in an open public meeting for any lawful purpose, at reasonable times and in a reasonable manner, in the common areas or recreational areas of the mobile home park.

(2) No provision contained in any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park shall infringe upon the right of the mobile home owners or tenants to communicate or assemble among themselves, at reasonable times and in a reasonable manner, for the purpose of discussing any problems relative to the mobile home park. Such discussions may be held in the common areas or recreational areas of the park, including halls or centers, or in any resident’s mobile home. In addition, the park owner or developer may not unreasonably restrict the use of any facility, including the use of utilities, when requested.

(3) No provision contained in any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park shall prohibit any mobile home owner from canvassing mobile home owners for the purposes described in this subsection. For the purposes of this subsection, the term “canvassing” includes an oral or written request; the distribution, circulation, posting, or publication of a notice; or a general announcement requesting the payment of membership dues or other matters relevant to the membership of the park association, federation, or organization. Such canvassing shall be done at a reasonable time or times and in a reasonable manner. It is the intent of the Legislature, through the enactment of this subsection, to prohibit any owner, developer, or manager of a mobile home park from prohibiting free communication among mobile home owners or tenants in the guise of regulations or rules restricting or limiting canvassing for association, federation, or organization dues or other association, federation, or organization matters.

26. Defendant denies she used any confidential information and has no knowledge of Plaintiff’s detriment.

27. Defendant denies any actions, conditions, or precedents required to bring this action have been met, waived or satisfied and therefore the Plaintiff’s action must fail as a matter of law.

28. Defendant maintains her own claims in her counter Complaint in response to the above Plaintiff's claims.

29. Defendant denies any damages have been caused to the Plaintiff by any of her actions and does however claim damages in her cross Complaint.

30. Defendant denies any fiduciary trust expected by the Plaintiff as a matter of employment, how ever at all times employed she acted in good faith for the employer.

31. Defendant denies Plaintiff's allegation in whole.

32. Defendant has no knowledge nor has she been advised of any damages done to the Plaintiff by any of her actions.

WHEREFORE, Defendant moves to have Plaintiff's claim dismissed in whole and asks the Court to Order the Plaintiff, their assigns, agents and employees to desist and stop harassing Defendant.

33. Defendant restates her own claims in regards to all previous paragraphs.

34. Defendant agrees the action, if true would fall under FSC 86 for Declaratory Judgement and denies any antitrust issues so therefore denies FSC 542 would apply to Plaintiff's claim. Therefore Plaintiff's claim must fail as a matter of law.

35. Defendant again denies using any of Colonial Manor's confidential information and therefore denies any breach of this alleged Agreement.

36. Defendant admits having basic knowledge of lease agreements however denies the balance of the allegations in this paragraph.

37. Defendant denies the allegations in the Plaintiff's claim in whole.

38. Plaintiff has not sufficiently made a case for any breach by the Defendant and therefore denies Plaintiff's claim.

39. Since the Plaintiff has earlier stated they have been damaged by a specific amount: {Paragraph 29. This is an action against Defendant for breach of fiduciary duty and damages in excess of \$30,00, exclusive of attorney's fees, for the relief demanded in the Complaint.} and therefore this request fails as a matter of law and does not fall under 542.335(1)(k) and further contradicts Plaintiff's earlier claims.

WHEREFORE, Since the Plaintiff seems to be fishing expedition with the intent of violating state law regarding homeowner's rights, and the Defendant has not and cannot be proven to have caused any damages to the Plaintiff, the Defendant asks this Court to dismiss in whole the Plaintiff's Complaint and proceed to adjudication the Defendant's cross Complaint.

40. Defendant continues to assert all previous statements.

41. Defendant denies this allegation.

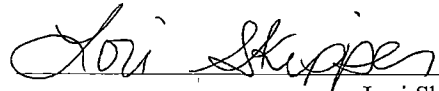
42. Defendant denies this allegation.

43. Defendant denies this allegation.

44. Defendant denies this allegation.

WHEREFORE, the Defendant believes the Plaintiff has failed to assert any basis for relief for their claim and it should fail as a matter of law. The SUMMONS is defective in that it has no date of service. Further the Defendant asks this Court to dismiss the Plaintiff's claim in whole and award Defendant associated costs and sanction both the Plaintiff, their agents, assigns and representatives in a financial amount that will deter them from filing such frivolous claims.

Respectfully Submitted this 23rd day of November, 2021 by:


Lori Skipper
Defendant

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, INC
ET AL
PLAINTIFFS AND COUNTER COMPLAINT
DEFENDANTS,
vs.
LORI SKIPPER,
DEFENDANT AND COUNTER COMPLAINT
PLAINTIFF

CASE NUMBER: 2021CA4553

COUNTER CLAIM

The Counter Claim Plaintiff, Lori Skipper now states the following:

1. As a result of her former employment with COLONIAL MANOR MHC HOLDINGS, INC, she is now the subject of numerous false accusations and discriminatory rules from the COUNTER COMPLAINT DEFENDANT so named herein as COLONIAL MANOR MHC HOLDINGS, INC et al, which includes but not limited to discriminatory treatment, violation of her rights as a homeowner, false claims, and intimidation as detailed in the forward statements.

Discriminatory Actions Based on Gender

Florida 760.07

2. Florida Statute clearly defines gender discrimination is a basis for relief in the Courts and the Counter Claim Plaintiff, Lori Skipper has been subjected openly to gender discrimination by COLONIAL MANOR MHC HOLDINGS, INC in they are claiming in their own law suit that she as a former employee and now an elected member of the HOA of Colonial Manor Mobile Home Park, her lawful domicile.
3. In their claim, the Colonial Manor MHC Holdings INC state that she was a resident manager of Colonial Manor Mobile Home Park. *(Line 6 General Allegations)* which although she does not admit there was a valid employment agreement in place at the time, she does admit she was an employee of Colonial Manor MHC Holdings INC.
4. She, the Plaintiff in this Cross Complaint, subsequently left that position to accept another job with the company on one of their other facilities which is evidenced by Defendant's Exhibit B *(Letter from Attorney Richard Lee {attachment Employment Agreement for Wyoming Terrace DBA East Garden and signed by Nate Nelson, an officer of both companies})*.
5. Defendant's Exhibit B letter further states that her actions on behalf of and in regard to the home owners association or individual renters are in gross violation of the agreement.
6. At least one previous male member of the HOA and Board President was also a former employee of Colonial Manor yet he suffered no such court actions and he, like the Plaintiff in this Cross Complaint was also the leader of the rent negotiation committee.

7. The actions of the Defendants in this Cross Complaint have created a hostile housing environment for her and has caused extreme emotional distress to her, all in violation of Florida 760.07 and is grounds for relief.

WHEREFORE The Cross Complaint Plaintiff asks this court to find in favor of her in this section of the Cross Complaint and award her reasonable actual damages as the Court sees fit and further award her punitive damages in the amount of \$50,000 for each instance of discrimination.

MAKING FALSE STATEMENTS

837.06 False official statements

8. The Plaintiff herein incorporates all previous claims in paragraphs 1 through 7 above and further states:
9. In multiple instances the Defendant herein, by and through their agents, assigns and employees have provided statements that are both false and misleading to this Court in their Complaint against the Plaintiff herein.
10. In paragraph 8 of the Defendant's Complaint against MS Skipper they state in part that *... "Defendant was responsible for items such as marketing, customer relations, leasing, rent collection, evictions, budgeting, rule enforcement, appearance of the park, and interacting with Colonial Manor's residents, potential residents, vendors, and other third-parties with whom Colonial Manor maintained a business relationship, a knowingly misleading statement since at no time did the Plaintiff herein have access to budgeting and could not perform evictions without the direction of the Defendant's agents and senior employees, and has no idea what "other third parties" she was supposed to interact with.*

11. In paragraph 11 of the Defendant's Complaint, they state that ..."*Colonial Manor takes reasonable efforts to maintain the secrecy and confidentiality of its' resident information and contact information...*" It is a fact, as supported by affidavit that the current park manager has released phone numbers of park residents to people outside the park and this is a clear effort and demonstration that the "reasonable efforts" made by Colonial Manor are non-existent at best the claim is utterly false in reality.
12. On multiple claims the Defendant in this Cross Complaint has based their claims on an employment agreement that falls under an agreement made for employment in a Mobile Home Park located in New Mexico, not Florida, nor is that park owned by Colonial Manor and by the very agreement cited is a DBA from an out of state corporation.
13. The Defendant's in this Cross Complaint have falsely claimed in paragraph 24 of their Complaint, to this Court the existence of a current resident manager "...24. On October 12; 2021, Colonial Manor's current resident manager, Cheryl Peak,..." This statement was made with full knowledge that Colonial Manor has not had since early September of 2021 a resident manager and the named party Cheryl Peak is a non resident park manager which violates the terms of the resident's prospectus.

WHEREFORE The Cross Complaint Plaintiff asks this court to find in favor of her in this section of the Cross Complaint and award her reasonable actual damages as the Court sees fit and further award her punitive damages in the amount of \$50,000 for each instance of false information statements and further order the Manatee County Prosecutor's Office to review the Defendant's claims for possible criminal law violations.

14. The Plaintiff herein incorporates all previous claims in paragraphs 1 through 7 above and further states:

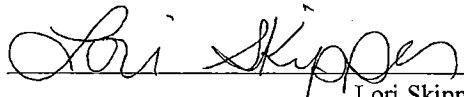
Florida 723 - MOBILE HOME PARK LOT TENANCIES

15. The Cross Complaint Defendants, by and through their agents, employees and assigns are attempting to prevent the Plaintiff in this Cross Complaint, a home owner from using her rights under 723.054 (1),(2),(3) in that they are, by their very claim against her are attempting to prevent her, as a home owner to engage in peaceful communications, canvassing, and enjoyment of socializing with other park residents.
16. On multiple occasions, the park owner has sent out false and misleading letters to home owners making outrageous claims against certain residents affiliated with the HOA Executive Board and on at least one recent occasion the park owner was recorded via security cameras in the park visiting specific home owners which belong to the negotiation committee while not visiting less active homeowners. An example of one of the recent communications is attached hereto and Marked as EXHIBIT 1.
17. The Cross Complaint Plaintiff has suffered emotional damage and excessive stress caused directly by actions of the park manager Cheryl Peak, who the Cross Complaint Defendant's claim is a resident manager however they know fully well she does not now and has not since her employ lived in Colonial Manor. The specific stress was caused by false claims made to the Cross Complaint Plaintiff that she had a man living with her who was not on the lease and further asked other residents if this were true as well as engaging other residents to make inquiries about the Cross Complaint Plaintiff's living situation and possible house guests. This action is all in violation of the Cross Complaint Plaintiff's right to privacy.

18. The Cross Complaint Plaintiff has been targeted for her participation in the HOA at Colonial Manor, all in violation of 723.0615 (1)b and this is proven by the Cross Complaint Defendant's own claim in paragraph 25 of their Complaint and further admits this conduct by citing their own letter sent by their lawyer attempting to prevent the Cross Complaint Plaintiff participating in the HOA *"...Colonial Manor issued a cease.:and-desist letter.to Defendant advising her that she was in gross violation of the Agreement and informing her that she must cease and desist from providing any assistance to Colonial HOA or discussing with Colonial HOA or any homeowners. any matter regarding the operation or management of the community..."*

WHEREFORE: The very actions taken by the owners, agents and employees of Colonial Manor MHC Holdings, INC are of a retaliatory nature and rise to the level of Civil Rights Violations as well as violations of Florida State Law and the Cross Complaint Plaintiff asks this Court to award damages in the amount of \$250,000 from each participant involved in their claim as well as financial sanctions against all legal counsel, Colonial Manor Employees, Owners, Agents, and Assigns who openly and knowingly assisted with the filing of the Complaint against Lori Skipper. The Cross Complaint Plaintiff also requests this Court Enter an order restraining the Cross Complaint Defendants from harassing, contacting, or molesting in any way that would interfere with the peaceful domicile enjoyment of MS Skipper.

Respectfully Submitted this 23 day of November, 2021 by:


Lori Skipper
Defendant

I placed a copy of this document (ANSWER TO COMPLAINT and COUNTER COMPLAINT) was served on the Plaintiff via US Mail with postage attached on the 22nd day of November, 2021 and addressed to the following:

CHRISTOPHER B. LUNNY (FBN: 0008982)

E-mail: clunny@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

JORDANN WILHELM (FBN: 1003182)

E-mail: jwilhelm@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

Radey Law Firm

301 South Bronough Street

Suite 200

Tallahassee, Florida 32301

Telephone: (850) 425-6654

Facsimile: (850) 425-6694

Counsel for Plaintiff,

Colonial Manor MHC Holdings, LLC

George E. Yeske
702-466-3954

County Court of the 12th Judicial
Circuit in and for Manatee County, FL
Civil Division

Colonial Manatee HC
Holdings, INC
ET AL Plaintiff

VS

Lori Skipper
Defendant

Case Number 2021 CA 4553

FILED FOR RECORD

2021 NOV 23 AM 10:44

CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

Notice of Service of
Interrogatory

On November 23, 2021, I served
the Plaintiff ANSWERS to Interrogatory.
By Placing my ANSWERS in US MAIL,
Postage attached and addressed as follows:

Christopher B. Lunny
301 S. Bronough St STE 200
Tallahassee, FL 32301

Lori Skipper
Nov 23, 2021